

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS AND A
COMMISSION ON PROFESSIONAL COMPETENCE FOR THE
LOS ANGELES UNIFIED SCHOOL DISTRICT
STATE OF CALIFORNIA**

In the Matter of the DISMISSAL of:

EFREN CADENA (EN 946466),

A Permanent Certificated Employee,

Respondent.

OAH No. 2024120209

DECISION

This matter was heard by the Commission on Professional Competence, (Commission) on May 19 and 20, 2025 in Los Angeles, California. The Commission consisted of Ray Alcala, Jim Durham and Irina Tentser, Administrative Law Judge (ALJ) with the Office of Administrative Hearings, State of California.

Brian Davenport, Assistant General Counsel II, appeared on behalf of the Los Angeles Unified School District (District)

Tamra M. Smith and Feiran Wang, Attorneys, appeared on behalf of Efren Cadena (Respondent), who was present throughout hearing.

Testimonial and documentary evidence was presented during hearing. The matter was submitted for decision on May 20, 2025.

During the Commissions deliberations, it became evident that there was an inconsistency between the causes of action contained in the District's Statement of Charges versus the District's Accusation. To obtain clarification on which causes of action the District is alleging against Respondent, on May 22, 2025, the ALJ reopened the record ordering the District to file and serve a statement by May 28, 2025, clarifying which causes of action are being alleged against Respondent, with any response by Respondent to the District's statement to be filed and served by June 4, 2025. On May 28, 2025, the District filed and served its statement, which was marked as Exhibit 22. Respondent did not file a response to District's Exhibit 22. The matter was re-submitted for decision on June 4, 2025.

The Commission considered the matter in executive session. After due consideration of the entire record including official notice of the pleadings and notices on file with OAH, the Commission makes the following factual findings, legal conclusions, and order.

In drafting the Decision, confidential personal information, including the full name of students, was redacted from the exhibits to protect privacy rights.

SUMMARY

The District seeks to dismiss Respondent on grounds of immoral conduct; unprofessional conduct; and persistent violation of or refusal to obey school laws. Respondent admitted he had the cell phone numbers of students on the girls basketball team, including that of V [REDACTED] R. and texted student V [REDACTED] R. between March 2, 2023,

through March 14, 2023, during school hours. The text messages were unnecessary because 1) they involved non-school related text messages to V [REDACTED] R.'s cell phone and; 2) Respondent asked V [REDACTED] R. to get out of class, during instructional time, to place DoorDash food orders for Respondent. The texts to a student for non-instructional purposes during school time demonstrated bad judgment on Respondent's part. However, the evidence presented by the District failed to establish that Respondent's exchange of cell phone numbers with V [REDACTED] R. and that the text communications between Respondent and V [REDACTED] R., were inappropriate and constituted grooming or were indicative of a person attempting or intending to groom a minor. Respondent, while admitting his bad judgment at hearing, affirmatively established that the sole purpose of the text messages was so that V [REDACTED] R. could order food on her cell phone application to be delivered to the school for Respondent, who then reimbursed her for the cost of the food. The District therefore failed to establish through a preponderance of the evidence that Respondent engaged in immoral conduct, unprofessional conduct, or persistent violation of or refusal to obey school laws.

FACTUAL FINDINGS

Parties and Jurisdiction

1. Respondent was, at all relevant times, a permanent certificated employee of the District. He was assigned as a Physical Education (PE) teacher at Bravo Medical Magnet High School (Bravo). At times relevant to the Accusation, Respondent's coaching duties included coaching the girls basketball team.

2. On December 5, 2024, the District filed a Statement of Charges against Respondent, charging him with immoral conduct (Education Code sections 44939);

unprofessional conduct (Education Code section 44932, subdivision (a)(2)); evident unfitness for service (Education Code sections 44932, subdivision (a)(6)); and persistent violation of or refusal to obey the school laws of the state or reasonable regulations prescribed for the government of the public schools by the State Board of Education or by the governing board of the school district employing him (Education Code section 44932, subdivision (a)(8).)

3. On November 27, 2024, Respondent filed and served a Request for Hearing and Notice of Defense.

4. On January 2, 2025, the District filed an Accusation against Respondent, charging him with immoral conduct (Education Code sections 44939); unprofessional conduct (Education Code section 44932, subdivision (a)(2)); and persistent violation of or refusal to obey the school laws of the state or reasonable regulations prescribed for the government of the public schools by the State Board of Education or by the governing board of the school district employing him (Education Code section 44932, subdivision (a)(8).)

5. The District presented no witness or expert at hearing to support its claims against Respondent. The District's case was based on the text messages exchanged between Respondent and V [REDACTED] R.

Complainant's Charging Allegations

6. The charges pertain to events that are alleged to have occurred during the 2022-2023 school year.

CHARGE 1

7. Complainant alleges in Charge 1 that, “[d]uring the 2022-2023 school year, Respondent unnecessarily and inappropriately exchanged cell phone numbers with student V [REDACTED] R.” (Exhibit 6, p. A64.)

8. V [REDACTED] R., then a 15 year old, 10th grade Bravo student was a member of the girls basketball team that Respondent coached during the 2022-2023 school year. Respondent had V [REDACTED] R.’s cell phone number as well as the other girls basketball team cell phone numbers as part of a group text chain. The use of a team group text chain was the customary way coaches at Bravo, like Respondent, communicated about team related events, such as games and practices. In addition, Respondent and V [REDACTED] R.’s father had a social relationship outside of school and, as a result, Respondent also was provided with V [REDACTED] R.’s cell phone based on that family friend relationship.

9. The District provided no corroborating evidence to support its claim Respondent “unnecessarily and inappropriately” exchanged cell phone numbers with V [REDACTED] R. In contrast, Respondent’s hearing testimony that he had a valid justification for having V [REDACTED] R.’s cell phone number was corroborated by credible evidence including the hearing testimony of fellow Bravo teachers, former Bravo girls basketball team student members, and a Bravo teacher whose daughter was a member of the girls basketball team.

10. Charge 1 was therefore not established.

CHARGE 2

11. Complainant alleged in Count 2 that:

Beginning on or about March 2, 2023 and ending on or about March 14, 2023, [Respondent] unnecessarily and inappropriately communicated with student V [REDACTED] R. via cell phone during school hours, including but not limited to the following:

- a. On or about March 2, 2023 around 9:23 AM, [Respondent] unnecessarily and inappropriately texted student V [REDACTED] R. to meet him in the weight room during class time.
- b. On or about March 6, 2023, around 8:41 AM, [Respondent] unnecessarily and inappropriately texted student V [REDACTED] R. whether she was at school.
- c. On or about March 7, 2023 around 11:20 AM, [Respondent] unnecessarily and inappropriately texted student V [REDACTED] R. requesting to borrow her phone to order food and implied that she should go to the restroom and leave her class during instructional time so that he may borrow her phone.
- d. On or about March 10, 2023, around 10:02 AM, [Respondent] unnecessarily and inappropriately texted student V [REDACTED] R., requesting her to order food from Urth Café with her Apple Pay, told her she could get one item and told her he would pay her back through Zelle.

e. On or about March 14, 2023, around 12:35 PM,
[Respondent] unnecessarily and inappropriately texted
student V [REDACTED] R., another student's address in Riverside
County and asked how far she lived from the address.

(Exhibit 6, pp. A64-A65.)

12. At hearing, Respondent stipulated that he engaged in the following cell
phone text message exchanges with V [REDACTED] R.:

13. On March 2, 2023 at 9:21 AM:

Respondent: Come to the weight room

V [REDACTED] R.: i'm not even there

Respondent: Oh ok why

V [REDACTED] R: idk

V [REDACTED] R.: im confused but idk i wanna go

Respondent: Confused?

Respondent: About

V [REDACTED] R: why i didn't go

Respondent: Lol

V [REDACTED] R: yea

(Exhibit 21, p. Z4.) (Original grammar and spelling.)

14. On March 6, 2023, at 8:41 AM:

V [REDACTED] R.: r u here yet

Respondent: Yeah why

(Exhibit 21, p. Z4.) (Original grammar and spelling.)

15. On March 7, 2023, at 11:20 AM:

Respondent: Let me borrow your phone to get food

V [REDACTED] R.: tell sam

Respondent: You can't go to restroom

V [REDACTED] R.: she makes u leave ur phone

Respondent: Oh shit I guess during passing period

V [REDACTED] R.: take me out last 5

Respondent: I texted her

V [REDACTED] R.: she jus said no

V [REDACTED] R.: [crying face emoji]

Respondent: Omg [raised eyebrow emoji]

(Exhibit 21, pp. Z4, Z6.) (Original grammar and spelling.)

16. On an unspecified date, at 8:42 AM:

V [REDACTED] R.: he's here

V [REDACTED] R.: [a]ndale

Respondent: Ok

V [REDACTED] R.: did they go get it

Respondent: I sent a student

V [REDACTED] R.: u have to come get it

Respondent: Why

V [REDACTED] R.: just come ima get it trouble

Respondent: Ok

Respondent: I can't leave my class alone that's why

Respondent: Who's in the form

Respondent: Front

V [REDACTED] R.: well just come real quick

Respondent: You there?

V [REDACTED] R.: this one lady

(Exhibit 21, pp. Z9-Z10.) (Original grammar and spelling.)

17. On March 10, 2023, at 10:02 AM:

Respondent: Urth café

Panini chicken el diablo

Urth bread pudding breakfast

(cinnamon)

Chicken and Cheese tamale combo

Respondent: Order it please

Respondent: You have Apple Pay

V [REDACTED] R.: u want a topping on ur bread pudding

V [REDACTED] R.: nothing

V [REDACTED] R.: or caramelized bananas

V [REDACTED] R.: ?

Respondent: Banana

V [REDACTED] R.: 2 bucks

V [REDACTED] R.: or 1

V [REDACTED] R.: tip

Respondent: 1

Respondent: Get what you want

Respondent: For you one item

V [REDACTED] R.: it'll be here around

V [REDACTED] R.: 11:15

V [REDACTED] R.: [screen shot of order summary from Urth Caffe –
Downtown for total of \$63.34]

Respondent: You have Apple Pay

V [REDACTED] R.: no i don't think I have it set up

Respondent: Ok I'll Zelle you

Respondent: You got a double croissant u should have
gotten food

(Exhibit 21, p. Z4) (Original grammar and spelling.)

18. On March 14, 2023, at 12:30 PM:

Respondent: [address]

Respondent: How far do you live from there

V [REDACTED] R.: from which house

Respondent: Yours

V [REDACTED] R.: no shit

V [REDACTED] R.: my mom or my dad

V [REDACTED] R.: [crying face emoji]

Respondent: What do you think

Respondent: Your moms house

Respondent: Duh

Respondent: [picture of map showing distance between two addresses]

(Exhibit 21, p. Z12.) (Original grammar and spelling.)

19. On March 15, 2025, at 10:14 AM:

Respondent: Where u @

V [REDACTED] R.: third floor

V [REDACTED] R.: why

Respondent: I'm hungry order me some pizza

Respondent: Change it to my name not yours

Respondent: I'm in cafeteria

V [REDACTED] R.: come at break

Respondent: What's J [REDACTED]'s number

Respondent: Number

Respondent: Come where

V [REDACTED] R.: come at break to order it

V [REDACTED] R.: [phone number]

(Exhibit 21, p. Z14.) (Original grammar and spelling.)

20. On March 15, 2023, at 8:02 PM:

V [REDACTED] R.: I [illegible] a large sweater

V [REDACTED] R.: When u get a chance leave it on my desk

Respondent: Bet

(Exhibit 21, p. Z14.) (Original grammar and spelling.)

21. As a teacher employed by the District, Respondent was subject to the District's January 2023 Code of Conduct with Students. (Exhibit 16.) The Code of Conduct policy expects teachers "to use good judgment, maintain professional standards and ethical boundaries." (*Id.*) Teachers are cautioned to avoid, as relevant here, communicating with students by phone "for purposes that are not specifically school-related." (*Id.*)

22. Respondent acknowledges he exhibited poor judgment by sending V [REDACTED] R. text messages in March 2023, as set forth in Factual Findings 12 through 20. Respondent claims his food delivery phone app was not working and he was too busy teaching his classes to arrange for food delivery. Respondent's justification for contacting a student, V [REDACTED] R., especially during her class time, so that she could fill his food orders is a weak excuse for his lack of judgment. Respondent could have reasonably dealt with his food delivery issues in a manner that did not interfere with a student's school day, such as, for example, packing himself a lunch. Similarly, Respondent's justification for texting V [REDACTED] R. regarding where she lived relative to a potential student he wanted to recruit for the basketball team was not satisfactorily specifically related to V [REDACTED] R.'s education.

23. In March 2023, Respondent failed to follow the Code of Conduct with Students policy, as set forth in Factual Finding 21, by texting during school hours for V█████ R. to come to the weight room so that he could borrow her phone to get himself food during instructional time; texting V█████ R. to lie to her teacher that she needed to use the restroom so that she could leave her class, during instructional time, to place a food order for him; asking her to place food orders on his behalf on multiple occasions; sending V█████ R. money via Zelle, even though it was to cover the cost of food ordered using V█████ R.'s phone; texting to ask V█████ R. to meet his food delivery at the front office; buying her food on one occasion as part of his order; and texting her to ask where she lived relative to another address. Respondent's communications were unnecessary. The evidence, however, does not support a finding that the communications were "inappropriate" in the context of the intent to groom and grooming allegations against Respondent.

24. Based on Factual Findings 11 through 23, Charge 2 was established in part as to the allegation that Respondent's communications with V█████ R. were "unnecessary," and not established as to the part of the allegation that the communications were "inappropriate."

CHARGE 3

25. Charge 3 alleges that "[Respondent's] conduct alleged in Charges 1 through 2, inclusive, constituted grooming or was indicative of a person attempting or intending to groom a minor." (Exhibit 6, p. A65.)

26. The District submitted no witnesses at hearing to support Charge 3. The only documentary evidence to support the grooming related allegations besides the texts between Respondent and V█████ R., submitted by the District at hearing is

contained in the District's Child Abuse and Neglect Reporting Requirements March 27, 2023 Policy Bulletin (the policy). (Exhibit 20.) The policy describes child abuse and neglect reporting requirements for District employees.

27. As relevant to the allegations against Respondent, the policy defines "grooming" as "inappropriate or illegal behavior (physical or not) . . . targeted to . . . students . . . for the purposes of developing a romantic or sexual relationship with a student." (Exhibit 20, p. A191.) "Inappropriate Conduct," examples include: "(1) verbal conduct . . . by phone, or using electronic means of sexual comments, questions, jokes, teasing; (2) physical conduct by kissing, hair stroking, . . . ; and (3) on or off school grounds conduct, by meeting behind closed or locked doors, and meeting a student away from school grounds." "Illegal Conduct" examples include: . . . ; (2) exhibitionism; and (3) child pornography, . . . and other exploitation in an online setting." (*Ibid.*)

28. Perpetrators of grooming focus on keeping "their conduct secret," "coerce" and "groom" students, and as "sexual conduct escalates," "methodically increase the attention and rewards they give to their student . . . targets." (Exhibit 20, p. A191.) In addition, grooming perpetrators "test their target's silence at each step;" "make a [student] target feel "special," by for example, brandishing gifts and/or spending extra time with the target in nonsexual ways or trying to move the relationship to a personal level or asking the student to run personal errands." (*Ibid.*) The purpose of the "special attention" is to "learn whether the target will keep silent." The goal of grooming is to progress to "sexualized behaviors" with the student target. (*Ibid.*)

29. Based on Factual Findings 7 through 28, Complainant did not establish Respondent intended to groom or groomed V [REDACTED] R. None of the text message communications between Respondent and V [REDACTED] R. objectively satisfy the policy's

description of grooming or intent to groom. None of the communications evidence any testing of boundaries, progressive sexualized communication, efforts to isolate V [REDACTED] R., efforts to be alone or spend extra time with V [REDACTED] R., efforts to move the relationship to a personal level to progress to sexualized behaviors, or efforts to have V [REDACTED] R. run personal errands to progress to sexualized behaviors.

30. At hearing, Respondent credibly denied the allegations against him, testifying that he did not intend to groom or groom V [REDACTED] R. Respondent admitted he was “not smart” and made a mistake he deeply regrets by, essentially, asking V [REDACTED] R. to act as his food delivery service because he felt comfortable with asking her to do so as a family friend and girls basketball team member. Respondent now understands he carelessly failed to consider that his food ordering requests, including instructing V [REDACTED] R. to leave her class during instructional time so that she could order him food, interfered with V [REDACTED] R.’s primary purpose for being at school, getting an education. Respondent testified that in the future, as a teacher and coach, he will not text student basketball team members regarding non-basketball related matters, however innocuous.

31. In April 2023, V [REDACTED] R.’s mother contacted Respondent, upset after discovering the text messages between him and V [REDACTED] R. During their conversation, Respondent apologized for asking V [REDACTED] R. to order food for him and told her it would not happen again.

32. After their conversation, also in April 2023, V [REDACTED] R.’s mother complained to Bravo’s school administration regarding Respondent’s texts to V [REDACTED] R. The allegations against Respondent by V [REDACTED] R.’s mother were that Respondent 1) sent “multiple inappropriate non-school related text messages” to V [REDACTED] R.’s phone; and 2) asked V [REDACTED] R. to get out of class, during instructional time, to place

DoorDash orders for Respondent. (Exhibit 13, p. A90.) Bravo's administration investigated the allegations. In her written statement to investigators, V [REDACTED] R. confirmed Respondent's communications with her were limited to asking her to order him food and, on one occasion, asking her to leave class to go to the restroom to place a food order. (*Id.*, p. A90.)

33. Respondent's claims that his communications with V [REDACTED] R. do not constitute an intent to groom or grooming were credibly corroborated by the witnesses who testified on behalf of Respondent at hearing. In addition, Respondent's claims of good character and appropriate behavior with students as a teacher and coach was corroborated by character reference letters submitted in support of Respondent. (Exhibit B.)

34. Ellen G. Stein, Ph.D., is a forensic clinical psychologist and expert in grooming. Dr. Stein has over 30 years of experience in clinical and educational diagnostics and treatment related to the allegations against Respondent. (Exhibit E.) Dr. Stein provided convincing expert testimony at hearing. In formulating her opinions, Dr. Stein reviewed the Accusation, the policy, and the text messages between Respondent and V [REDACTED] R. Based on her review, Dr. Stein opined that while, admittedly, Respondent did not make a "great decision" in texting V [REDACTED] R. to order food for him, it was clear based on the content and context of the text messages that Respondent's only goal was to get lunch, not to groom V [REDACTED] R. Dr. Stein supported her opinion by pointing to the fact that Respondent's text messages were inconsistent with an intent to groom or grooming because none of the messages contained any of the factors of grooming behavior, such as an intent to get V [REDACTED] R. alone with Respondent. Accordingly, Dr. Stein convincingly opined that Respondent's conduct was insufficient to conclude that he intended to groom or did groom V [REDACTED] R.

35. Ignacio Solis, a Bravo employee for the past 10 years, first as a campus aide and now as a school climate advocate, credibly testified at hearing. During the 2022-2023 school year, Mr. Solis was the girls team basketball coach, but was transitioning into the school climate advocate position. As a result, Respondent assumed additional responsibilities with basketball team coaching, including supervising open lunch time basketball practice and play for Bravo students and basketball team members, after the basketball season ended in 2023.

36. Mr. Solis testified that he grew up with Respondent and has known him for over 15 years. Based on his personal relationship with Respondent and professional observations of Respondent with students, including V [REDACTED] R., Respondent always acted in an appropriate and coach and mentor focused manner with students. Mr. Solis corroborated Respondent's testimony that he and Respondent had student phone numbers, like V [REDACTED] R.'s, as part of a group text chain to communicate about team matters, such as games and practices. Mr. Solis testified that he was aware of the allegations against Respondent and continued to hold a positive opinion of Respondent, believing Respondent had no bad intentions in communicating with V [REDACTED] R. Mr. Solis described the "tough impact" losing Respondent as a coach had on Bravo's students, testifying Respondent "created the basketball culture at Bravo."

37. M [REDACTED] R [REDACTED], a former student at Bravo, testified in support of Respondent at hearing. During the 2022 to 2023 school year, Ms. R [REDACTED] was a senior and a member of the girls basketball team. Ms. R [REDACTED] testified Mr. Solis was the girls basketball coach and Respondent was the assistant coach during that time. Respondent was also Ms. R [REDACTED]'s teacher for her weightlifting class. Ms. R [REDACTED] described Respondent as a "great teacher" and "touch coach," whose "main goal" was to "win championships." Ms. R [REDACTED] interacted with Respondent almost daily as he

was one of the girls basketball coaches, testifying he helped her become a better “shooter” through his coaching. Ms. R [REDACTED] described Respondent’s interactions with students as being “the same towards everyone,” “fair,” “cool,” and appropriate. Ms. R [REDACTED] testified she knew V [REDACTED] R. because they were teammates and “hung out during lunch” every day, since Bravo is a “small school.” In observing Respondent’s interactions with V [REDACTED] R., Ms. R [REDACTED] stated there was “nothing out of the ordinary,” or “inappropriate,” and that, despite the fact Respondent was friendly with V [REDACTED] R.’s father, she observed “no special treatment” of V [REDACTED] R. by Respondent.

38. Ms. R [REDACTED] also confirmed that there was a group text chain between Mr. Solis, Respondent, and the student team members, to discuss team related business, such as practices and game times. In addition, Ms. R [REDACTED] testified that Respondent customarily asked people, including students, to purchase food for him, and that students, like herself, offered Respondent food because they rarely saw Respondent eating.

39. Ms. R [REDACTED] described the time after Respondent left school due to the allegations against him as “confusing” and a “rough time” for the Bravo girls basketball team members. According to Ms. R [REDACTED], Respondent’s leaving as their basketball coach had a “huge impact” because he was the “glue to everything.” After Respondent left, Ms. R [REDACTED] reported that the girls basketball players were “lost” and the team “broke . . . apart.”

40. Lucia Avina, a math teacher at Bravo for the past 20 years and Respondent’s colleague for the past eight years, testified in support of Respondent at hearing. Respondent coached Ms. Avina’s son and daughter; the latter was a member of the girls basketball team. Ms. Avina testified that she was present for 99 percent of the girls basketball team’s practices and games. Each time she observed Respondent’s

behavior with students she evaluated it as "fair," "respectful," and "never inappropriate." Ms. Avina opined Respondent is a "great coach," who is "dedicated" and "knowledgeable."

41. Ms. Avina observed Respondent's interactions with V [REDACTED] R., describing them as "professional" and "never inappropriate." Ms. Avina confirmed that there was a group chat about team business which included all the girls basketball players and coaches, like Respondent. Ms. Avila, who checks her daughter's phone regularly, testified she never observed anything inappropriate in her daughter's texts with Respondent. Ms. Avila testified that sharing and ordering food was a common practice as part of the girls basketball team experience. While Ms. Avila believed Respondent's text to V [REDACTED] R. to leave class to order him food was a violation of school policy, she did not believe amounted to an intent to groom or grooming behavior. After Respondent left school in 2023 due to the allegations against him, Ms. Avila described that the girls basketball team "fell apart."

42. J [REDACTED] A., a 12th grade student, testified in support of Respondent at hearing. J [REDACTED] A. was a 10th grader at Bravo and a member of the girls basketball team during the relevant 2022-2023 school year. J [REDACTED] A. testified that as a member of the basketball team, she saw Respondent "every day." She described Respondent as a "good and amazing coach" who "gave students confidence," and acted in a "professional" manner towards her and "never made her uncomfortable." J [REDACTED] A. has known V [REDACTED] R. since they were seven years old; she observed Respondent's interactions with V [REDACTED] R. during the relevant time period, testifying Respondent acted in a "respectful" and appropriate manner. J [REDACTED] A. confirmed that Respondent asked other coworkers and players to get food and that food was also regularly brought in for the team and Respondent by parents. J [REDACTED] A. testified she was

“heartbroken” when Respondent left Bravo; his leaving “shattered” the girls basketball program, leading J [REDACTED] A. to transfer schools.

43. Respondent submitted five character reference letters supporting his claims that he does not engage in inappropriate behavior with students from fellow teachers and coaches and former students. (Exhibit B.) The letters’ authors all described Respondent as a professional and dedicated educator and coach who acted respectfully and appropriately with all students.

CHARGE 4

44. Charge 4 alleges that Charges 1 through 3, separately, and in any combination, support Respondent’s dismissal from the District. (Exhibit 6, p. A65.)

45. Based on Factual Findings 7 through 10 and 25 through 43, Charges 1 and 3 were not established. Accordingly, Charges 1 and 3 do not support Respondent’s dismissal from the District.

46. Based on Factual Findings 11 through 24, Charge 2’s allegations that Respondent inappropriately communicated with V [REDACTED] R. via cell phone during school hours was not established. Accordingly, Charge 2’s allegations of inappropriate communication do not support Respondent’s dismissal from the District.

47. As more fully set forth in the Legal Conclusions, based on Factual Findings 11 through 24, Charge 2’s allegations that Respondent’s unnecessarily communicated with V [REDACTED] R. via cell phone during school hours was established. However, based on the totality of the circumstances, the text communications, focused on the primary goal of having V [REDACTED] R. order Respondent food, through unnecessary, do not support Respondent’s dismissal from the District.

Ultimate Factual Findings

48. Respondent is a respected teacher and coach who has worked for the District for 17 years. He has been a PE teacher and coach at Bravo since 2016. During his tenure at Bravo, Respondent was never accused, charged with, or found guilty of any inappropriate behavior. This proceeding is the first and only instance Respondent has been accused of intent to groom or grooming.

49. It is undisputed Respondent made an ill-advised decision by asking V [REDACTED] R., on one occasion, to leave class for no other reason than he wanted to buy and deliver food for him. However, none of the evidence presented by the District supports findings that Respondent acted inappropriately with V [REDACTED] R. in the context of the intent to groom and grooming allegations. The only substantiated allegation is that in March 2023, Respondent sent V [REDACTED] R. text messages asking her to buy him food using her cell phone application, texted her to see where she lived so she could possibly carpool with a potential basketball team recruit, and reimbursed V [REDACTED] R. for the food purchases. Respondent deeply regrets his conduct, recognizes that he exhibited poor judgment by sending the texts, and credibly testified he will not engage in similar conduct in the future. It was established the texts were unnecessary, a fact Respondent does not dispute.

50. Respondent was disciplined by the District based on his conduct which forms the basis for the Statement of Charges and Accusation. On March 18, 2024, the District issued both a Notice of Unsatisfactory Acts and a Notice of Suspension (15 Days).

51. Under the circumstances demonstrated, dismissal is not warranted.

LEGAL CONCLUSIONS

Jurisdiction

1. The Commission has jurisdiction to proceed in this matter under Education Code section 44944.

Burden and Standard of Proof

2. The District has the burden of proving its allegations by a preponderance of the evidence. (*Gardner v. Commission on Professional Competence* (1985) 164 Cal.App.3d 1035, 1039-1040.) Preponderance of the evidence means that "the evidence on [the District's] side outweighs, preponderates over, is more than, the evidence on the other side." (*Glage v. Hawes Firearms Co.* (1990) 226 Cal.App.3d 314, 325.)

Disposition

3. District did not establish that Respondent engaged in immoral conduct within the meaning of Education Code sections 44939.

4. District did not establish through a preponderance of the evidence that Respondent committed unprofessional conduct within the meaning of Education Code section 44932, subdivision (a)(2). Respondent's texts with V [REDACTED] R., the only goal of which was to have her order him food, though unnecessary, do not rise to the level of unprofessional conduct in light of the established context of the communications.

5. District did not establish that Respondent engaged in persistent violation of or refused to obey the school laws of the state or reasonable regulations prescribed for the government of the public schools by the State Board of Education or by the

governing board of the District employing him, within the meaning of Education Code section 44932, subdivision (a)(8).)

ORDER

The Accusation and Statement of Charges against Respondent Efren Cadena are dismissed. Respondent Efren Cadena shall not be dismissed from employment with the Los Angeles Unified School District.

IT IS SO ORDERED.

DATE: 08/01/2025


Ray Alcala (Aug 1, 2025 13:26:08 PDT)

RAY ALCALA

Commission Member

DATE: 08/01/2025


Jim Durham (Aug 1, 2025 15:40:15 PDT)

JIM DURHAM

Commission Member

DATE: 08/01/2025



IRINA TENTSER

Administrative Law Judge

Office of Administrative Hearings